

Attachment 2
U.S. Customs and Border Protection
Sole Source Determination
For actions above the micro-purchase threshold but not exceeding the SAT

Date: 1 March 2025 PR Number: 20150644 _____

1. Nature and/or description of the item/service being procured and anticipated cost:

This is a purchase of brand name software, Tecolote for Automated Cost Estimating Integrated Tools (ACEIT). It is a software license renewal for seven (7) users at a single site. Customs and Border Protection (CBP) Air and Marine Operations (AMO) requires the tool. The total contract estimated cost with a base year and two option years is [REDACTED]

2. Sole Source Determination Rationale in accordance with FAR 13.106-1(b)(1)(i) and (ii).

(Check one and explain below):

- ☒ Only one source reasonably available.
- ☐ Urgent and compelling circumstances exists.
- ☐ Exclusive licensing agreement exists.
- ☒ Brand name. If the brand name requirement applies to a portion of the procurement, please identify that portion.
- ☐ Industrial Mobilization
- ☐ Other. Explain:

ACEIT is a Commercial Off the Shelf (COTS) industry standard program to support acquisition program Lifecycle Cost Estimate (LCCE) modeling. This specific software is only offered through the original equipment manufacturer (OEM), Tecolote. CBP continues to use the ACEIT software because Department of Homeland Security (DHS) Cost Analysis Division (CAD) developed program cost estimating models and tools for all AMO aircraft in ACEIT. If AMO were to re-develop or use another similar service, it would require additional re-development of existing models/tools, re-training, and additional costs. This would not be advantageous to the government.

3. The anticipated price will be determined fair and reasonable based on one or more of the price analysis techniques described below in accordance with FAR Part 13.106-3(a)(2). *(Check one and provide short explanation or description of action taken):*

- ☐ Market Research. GSA schedule review.
- ☒ Comparison of the proposed price with prices found reasonable on previous purchases.
- ☐ Current price List.
- ☐ Comparison with similar items in a related industry.
- ☒ Comparison to IGCE.
- ☐ Contracting Officer's personal knowledge.
- ☐ Other. Explain:

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Pricing will be deemed fair and reasonable based on the IGCE and historical purchases.

4. Technical/Requirements Personnel Certification:

I certify that this requirement meets the Government's minimum need and that the supporting data, which forms a basis for the Sole Source Determination, is accurate and



Technical Representative/COR

3/17/25
Date

5. Contracting Officer Certification/Approval:

I hereby determine that the circumstances described herein exist and that the information is accurate and complete to the best of my knowledge:

 

Contracting Officer

Date